Township of NIPISSING
"Life the way it should be" 1888

The Corporation of the Township of Nipissing
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REPORT TO COUNCIL

Date: June 13, 2024

From: Kris Croskery-Hodgins, Municipal Administrator

Re: Review of User Fee Policy and Current User Fees

BACKGROUND/OVERVIEW

The User Fee Policy was approved by Council by Resolution R2018-230, effective January 1, 2019. Periodic review of policies is an important practice to keep best practices current and effective. No changes are recommended to the policy.

The last User Fee By-Law was passed in 2021 on November 21st. Costs change and an updated comparison of locally charged fees should be consulted for a review of fees to keep current and accurate.

RESULTS

A review of local fees was conducted by Township Staff and were utilized in the comparison of fees charged. A current Schedule 40 from the 2023 FIR was also used for calculations per the policy.

There are some fees that are recommended to be updated to cover some actual costs and match or come in line with locally charged fees.

RECOMMENDATIONS:

Staff recommends the updated fees highlighted on the attached draft User Fee listing per the research documents also attached.

Respectfully,

Kris Croskery-Hodgins, Municipal Administrator

SCHEDULE "A" TO BY-LAW 2024-XX
FEES CHARGED BY THE CORPORATION OF THE TOWNSHIP OF NIPISSING

DRAFT

Description of Fees	Fees	Proposed
ADMINISTRATION		
Tax Certificate (per roll number) (no verbals)	$ 45.00	$ 50.00
Returned Item Charge (NSF)	$ 35.00	$ 40.00
Foreign Exchange Payment Processing Fee	$ 15.00	$ 20.00
Record Search (minimum 1 hour charge) (per hour)	$ 25.00	$ 30.00
Tax Sale Registration – 1st Notification Process (plus actual costs)	$ 150.00	
Tax Sale Registration – Final Notice Process (plus actual costs)	$ 200.00	
Tax Sale Registration – Public Tender Process (plus actual costs)	$ 500.00	
Wrecking Yard Permit – annually	$ 100.00	
Entrance Permit (Includes 911 sign & installation)	$ 200.00	
Road Information Request	$ 45.00	$ 50.00
Building Information Request (Work Orders)	$ 45.00	$ 50.00
MUNICIPAL FREEDOM OF INFORMATION AND PROTECTION OF PRIVACY ACT (MFIPPA) (fees as prescribed by legislation)		
Request	$ 5.00	
Search Time (per 15 minutes)	$ 7.50	
Preparation of Records for Disclosure (per 15 minutes)	$ 7.50	
Photocopies or computer print outs (per page)	$ 0.20	
PLANNING		
Zoning Information Request	$ 45.00	$ 50.00
Subdivision Compliance Letter	$ 45.00	$ 50.00
Lot Levy for McQuaby Lake Subdivision	$ 100.00	
Lot Levy for Ski Hill Subdivision	$ 100.00	
Pre-Consultation - ~~Solar Project Application and~~ Planning Report (Refundable deposit less actual costs)	$ 500.00	$ 750.00
CONSENT APPLICATION		
Application Fee (non-refundable)	$ 500.00	
Refundable Deposit (plus actual costs as required)	$2,500.00	
Granting of a Consent (Certificate) (non-refundable)	$ 250.00	
MINOR VARIANCE		
Administration Fee (non-refundable)	$ 500.00	
Refundable Deposit (plus actual costs as required)	$1,500.00	$2,500.00
ZONING BY-LAW AMENDMENT FEES		
Administration Fee (non-refundable)	$ 500.00	
Refundable Deposit (plus actual costs as required)	$2,500.00	
OFFICIAL PLAN AMENDMENT		
Administration Fee (non-refundable)	$ 500.00	
Refundable Deposit (plus actual costs as required)	$2,500.00	
SITE PLAN CONTROL		
Administration Fee (non-refundable)	$ 500.00	
Refundable Deposit (plus actual costs as required)	$1,500.00	$2,500.00
SUBDIVISION AGREEMENT		
Administration Fee (non-refundable)	$2,500.00	
Refundable Deposit (plus actual costs as required)	$2,500.00	
DEEMING BY-LAW PREPARATION		
Administration Fee (non-refundable)	$ 250.00	
Refundable Deposit (plus actual costs as required)	$1,500.00	
LAKESHORE ROAD AND ROAD CLOSING FEES		
Land Cost (per frontage foot)	$ 25.00	
Application Fee (non-refundable)	$ 250.00	
Refundable Deposit (plus actual costs as required)	$2,500.00	

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BUILDING DEPARTMENT		
Construction (new, additions, renovations, plumbing, etc.)	$8.60/$1,000 of construction *Minimum Permit Fee $130.00	
Demolition	$100.00	
Conditional	$130.00 plus $8.60/$1,000 of construction value	
Change of Use	$130.00 plus $8.60/$1,000 of construction value	
Searching of Records (Building Department Only)	$110.00	
Special Inspection	$160.00	
Reinspection	$120.00	
Commencing of Work Prior to Permit Issuance	$175.00	
Application for Transfer of Permit	$ 25.00	
Fees as per Building By-Law 2017-04, Schedule "A"		
FIRE DEPARTMENT		
Fire Work Orders Information	$ 45.00	$ 50.00
Requested fire prevention inspections of all buildings and property:		
Commercial, industrial, provincial/federal occupancies (1 hour minimum)	$ 100.00	
Every additional ½ hour **Commercial & Industrial includes report.	$ 25.00	
Residential occupancies including government funded Day Care Centres, Group Homes, Child Care Provider Homes, Bed & Breakfast Homes and Schools (per inspection, includes report)	$ 75.00	
Fire Inspection For:		
Special Occasion Permits	$ 37.50	
Liquor Licence (includes report)	$ 75.00	
Emergency Response		
Vehicle fire or danger of fire Motor Vehicle Accident – for each fire apparatus as follows: ***Non-Residents Only*** **Includes any accident occurring on a Township Road or Private Road within the Township of Nipissing involving an enclosed vehicle, ATV, UTV, snowmobile or any motorized vehicle.**		
First Hour – based on current Ministry of Transportation rates	Per MTO rates	
Per ½ Hour Thereafter	Per MTO rates	
Hazardous Materials, environmental spills or clean ups for each fire apparatus as follows:		
First Hour – based on current Ministry of Transportation rates	Per MTO rates	
Per ½ Hour Thereafter	Per MTO rates	
Hazardous Materials, spills or clean up – plus actual costs as incurred.		
False Alarms – within a 12 month period		
First false alarm	No Charge	
Second false alarm	$ 100.00	
Third false alarm	$ 250.00	
Forth false alarm	$ 400.00	
Thereafter (unlimited)	$ 150.00	

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Recovery of Costs: Expenses incurred by the Township to execute a fire protection agreement, retain the services of private contractors, rent special equipment, preserve property or evidence or in order to eliminate an emergency risk or risk of an emergency situation.	Actual Costs	
OFF-ROAD EMERGENCY RESPONSE		
Apparatus (includes UTV Unit) per Hour for Each Apparatus	$ 500.00	
Personnel Per ½ Hour for Each Firefighter Responding	$ 32.00	
Hydro Line Response – Fire, Sparking or Downed Line Hold & Secure		
Apparatus First Hour For Each Apparatus – based on current MTO rate	Per MTO rates	
Apparatus Per ½ Hour Thereafter for Each Apparatus	Per MTO rates	
Personnel Per Hour for Each Firefighter Responding	$ 32.00	
Combination Smoke and Co Alarm – Loaner Program Replacement	$ 45.00	
LANDFILL		
Household Appliances	$ 10.00	
Fridge, freezer or air conditioner – tagged as Freon free	$ 10.00	
- untagged	$ 40.00	
Brush – 5 ton dump trailer and under	$ 5.00	
BULK items accepted at Wolfe Lake Landfill ONLY		
Mattress or box spring	$ 25.00	
Carpet, flooring up to 12' x 12'	$ 25.00	
Carpet, flooring over 12' x 12'	$ 50.00	
Couch	$ 20.00	
Stuffed or upholstered chair/ottoman	$ 10.00	
Plastic Outdoor Furniture (per item)	$ 5.00	
Tarp (10' x 20' and over)	$ 5.00	
Shingles – 5-ton dump trailer and under	$ 30.00	
Renovation waste – 5-ton dump trailer and under	$ 75.00	
Watercraft	$ 150.00	
MIXED LOADS MUST BE SORTED FOR DISPOSAL:		
Tandem Trailer	$ 80.00	
Single Axle (Dump Truck)	$ 180.00	
Tandem Truckloads	$ 250.00	
Dumpster or Tri-Axle Truckloads (12 Yards and Up)	$ 300.00	
911 Signs		
Sign (for replacement sign blade)	$ 50.00	
Post	$ 40.00	
Installation	$ 30.00	
Sign for Existing Entrance (includes sign blade, post and installation)	$ 120.00	
FACILITIES RENTAL		
Nipissing Community Centre		
Damage Deposit (Refundable) Non-Alcohol Event Rental	$ 75.00	
Damage Deposit (Refundable) Alcohol Event Rental	$ 100.00	
Key Deposit (Refundable)	$ 25.00	
Alcohol Licenced Event (6 p.m. to 2 a.m.) *Special Occasions Permit Required (includes kitchen rental)	$ 300.00	
Kitchen Rental	$ 50.00	
Hall Rental – ½ Day (4 hours approximately) (includes kitchen rental)	$ 100.00	
Hall Rental – Full Day (8 hours approximately) (includes kitchen rental)	$ 150.00	

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Hall Rental – 2 hours – Education/Training Rate (does not include kitchen rental) *requires third party liability insurance	$ 25.00	
Funeral Luncheon (includes kitchen rental)	$ 50.00	
Additional Rental Setup Appointments (per hour)	$ 20.00	
Nipissing Fitness Centre		
Swipe Card Deposit (Refundable) Required for each membership	$ 10.00	
Individual Membership – 1 Year	$ 200.00	
Individual Membership – 6 Months	$ 120.00	
Individual Membership – 3 Months	$ 60.00	
Individual Membership – 1 Month	$ 25.00	
Family Membership (2 Members) – 1 Year	$ 325.00	
Senior Membership (60 years of age) – 1 Year	$ 150.00	
Student Membership – 1 Year	$ 150.00	
Community Centre Sign		
Advertising of event (up to 7 days)	$ 50.00	
Heritage Park		
Outdoor Rink Facility Rental per day	$ 100.00	
Nipissing Township Museum Buildings		
Church Building (Use for day, includes set up and supervision of site)	$ 500.00	
Gazebo and grounds	$ 250.00	
CEMETERY FEES		
Nipissing Union Cemetery, Commanda Union Cemetery and St. John's Alsace Cemetery		
Township Resident: Single Lot	$ 340.00	
Cremation Lot *Block 14 only	$ 220.00	
Single Lot for 2 Cremated Remains	$ 400.00	
Non-Resident: Single Lot	$ 530.00	
Cremation Lot *Block 14 only	$ 265.00	
Single Lot for 2 Cremated Remains	$ 590.00	
Interment Rates: Regular Grave Opening – weekdays	$ 300.00	
- Saturdays	$ 400.00	
Cremation Opening – weekdays	$ 150.00	
- Saturdays	$ 200.00	
Foundation Rates:		
Under 36 Inches	$ 400.00	
36 to 48 Inches	$ 500.00	
48 to 60 Inches	$ 800.00	
Over 60 Inches	$ 900.00	
Pad Base (Flat Marker) *Pillow marker 173 square inches and up	$ 200.00	
Install ground Setting *Flat marker under 173 square inches	$ 35.00	
***Fees per By-Law Number 2022-38*		
Miscellaneous		
Map of Township – Large, coloured	$ 15.00	$ 20.00
Copies: Black and white, 8 ½" x 11" or 8 ½" x 14" per page	$ .25	
~~Copies: Black and white, 11" x 17" per page~~	~~$ .50~~	remove
Colour copies per page, all sizes	$ .75	
Facsimile per page, includes transmission report	$ 1.00	
Mileage Rate per kilometer (km)	$ .55	$ .64

THE CORPORATION OF THE TOWNSHIP OF NIPISSING

BY-LAW NUMBER 2024-XX

Being a by-law to provide for fees charged by the Corporation of the Township of Nipissing.

WHEREAS the Corporation of the Township of Nipissing charges various fees for licenses, permits and services offered by the Corporation.

AND WHEREAS Sections 390 to 400 of the Municipal Act, S.O. 2001, c. 25 and Regulation 244/02 gives authority for a municipality to impose fees and charges.

AND WHEREAS pursuant to Section 69 of the Planning Act, R.S.O. 1990, c. P. 13, a Council of a Municipality may, by by-law, prescribe a tariff of fees for the processing of applications made in respect of planning matters, which tariff shall be designed to meet only the anticipated cost to the municipality or to a Committee of Adjustment in respect of the processing of each type of application provided for in the tariff.

AND WHEREAS the Corporation deems it advisable to create a comprehensive by-law to provide for the charging of fees.

NOW THEREFORE the Council of the Corporation of the Township of Nipissing ENACTS AS FOLLOWS:

1. That the fees provided in the schedules contained within for this by-law shall be charged for licenses, permits and services listed.

2. That if the provisions of this by-law conflict with any other by-law of the Corporation heretofore passed then the provisions of this by-law shall prevail.

3. This by-law shall come into force on the 14th day of August, 2024.

4. That By-law No. 2021-53 is hereby repealed.

READ A FIRST, SECOND AND THIRD TIME AND PASSED THIS 13TH DAY OF AUGUST, 2024.

Mayor:

Municipal Administrator:

User Fee Total Expense Calculations:			2024											
User Fee	*Line 11*	*$548,983*												
Corporate Management			**Staff**	**Hours per**	**Hours Year**	**Fee to charge**	**Current Charge**	**Difference**	**Recommendation:**	**2024**	**2025**	**2026**	**2027**	**2028**
Tax Certificate			3	0.25	65	$87.98	$ 45.00	$42.98	Per area fees	$ 50.00	$ 55.00	$ 60.00	$ 65.00	$ 65.00
Road Information Request			2	0.75	39	$131.97	$ 45.00	$86.97	Per area fees	$ 50.00	$ 55.00	$ 60.00	$ 65.00	$ 70.00
Building Information (work order) Request			2	1	52	$131.97	$ 45.00	$86.97	Per area fees	$ 50.00	$ 55.00	$ 60.00	$ 65.00	$ 70.00
Returned Item Charge (NSF)			2	0.5	7.5	$131.97	$ 35.00	$96.97	Per Bank & actual	$ 40.00	$ 40.00	$ 40.00	$ 40.00	$ 40.00
Foregin Exchange Payment Processing Fee			3	1	110	$87.98	$ 15.00	$72.98	Actual Costs	$ 20.00	$ 25.00	$ 30.00	$ 35.00	$ 40.00
Record Search			3	1	5	$87.98	$ 25.00	$62.98	Actual costs/reasonable	$ 30.00	$ 35.00	$ 40.00	$ 40.00	$ 40.00
Tax Sale Registrration - 1st notification			1	8	16	$263.93	$ 150.00	$113.93	based on actual costs	$ 150.00	$ 150.00	$ 150.00	$ 150.00	$ 150.00
Tax Sale Registration - Final Notice			1	8	16	$263.93	$ 200.00	$63.93	based on actual costs	$ 200.00	$ 200.00	$ 200.00	$ 200.00	$ 200.00
Tax Sale Registration - Public Tender process			1	14	28	$263.93	$ 500.00	($236.07)	based on actual costs	$ 500.00	$ 500.00	$ 500.00	$ 500.00	$ 500.00
Wrecking Yard Permit - Annually			3	4	4	$87.98	$ 100.00	($12.02)	estimate	$ 100.00	$ 100.00	$ 100.00	$ 100.00	$ 100.00
Map of Township - Large, coloured							$ 15.00		based on actual costs	$ 20.00	$ 20.00	$ 20.00	$ 20.00	$ 20.00
Photocopies	Black and white						$ 0.25		based on actual costs	$ 0.25	$ 0.25	$ 0.25	$ 0.25	$ 0.25
	Coloured						$ 0.75		based on actual costs	$ 0.75	$ 0.75	$ 0.75	$ 0.75	$ 0.75
Facximile per page, includes a trans report							$ 1.00		based on actual costs	$ 1.00	$ 1.00	$ 1.00	$ 1.00	$ 1.25
Mileage Rate per Kilometre (km)						0.64	$ 0.55	$ 0.09	based on CRA recommend	$ 0.70	$ 0.71	$ 0.72	$ 0.73	$ 0.74
Environmental Services		***$ 423,059.00***												
Landfill costs do not include closure costs**			2	8	2080	$ 101.70								
Recreation Services		***$ 34,508.00***	1	20	960	$ 35.95								
Community centre costs do not include renewal.														
Planning and Development		***$106,347***	1	8	2080	$ 51.13								
Zoning Information Request			2	1	110	$ 483.40	$ 45.00	$ 438.40	Per area fees	$ 50.00	$ 55.00	$ 60.00	$ 65.00	$ 65.00
Subdivision Compliance Letter			2	2	10	$ 5,317.35	$ 45.00	$ 5,272.35	Per area fees	$ 50.00	$ 55.00	$ 60.00	$ 65.00	$ 70.00
Minor Variance - Refundable Deposit amount						$ 2,500.00	$ 1,500.00	$ 1,000.00	Based on actual costs	$ 2,500.00	$ 2,500.00	$ 2,500.00	$ 2,500.00	$ 2,500.00
Site Plan Control - Refundable Deposit amount						$ 2,500.00	$ 1,500.00	$ 1,000.00	Based on actual costs	$ 2,500.00	$ 2,500.00	$ 2,500.00	$ 2,500.00	$ 2,500.00
Fire Department		***$ 544,213.00***												
Fire Work Orders Information			1	3	15	$ 2,418.72	$ 45.00	$ 2,373.72	per area fees	$ 50.00	$ 55.00	$ 60.00	$ 65.00	$ 65.00